



DEPARTMENT OF PUBLIC SAFETY

Division of Homeland Security and Emergency Management

BUILDING SECURITY AND OCCUPANT PROTECTION

8 CCR 1507-41

Editor's Notes follow the text of the rules at the end of this CCR Document.]

AUTHORITY

The Director of the Division of Homeland Security and Emergency Management (DHSEM) is authorized by the provisions of 24-33.5-1608, C.R.S., to adopt rules and regulations concerning safety and security to protect state personnel and property owned or leased by the state, including, but not limited to, facilities, buildings, and grounds. In adopting such rules and regulations the director shall use as general guidelines the building security and occupant protection standards in Federal Statutes, Presidential Directives, and the rules promulgated thereunder, as amended from time to time.

DEFINITIONS

The following definitions shall apply to these rules and regulations:

“Administrator” shall mean a person who is authorized or delegated the authority to make substantive decisions on behalf of the Executive Director concerning a Department's state government continuity, safety, and security responsibilities.

“Agencies” shall mean all state department and agencies.

“Director” shall mean the Director of the Division of Homeland Security & Emergency Management.

“Emergency Response Guide (ERG)” shall mean the documents developed by the ERG Working Group which consists of a compilation of emergency response procedures for the most likely emergencies to be encountered by state facilities.

“Emergency Response Guide (ERG) Working Group” shall mean the committee that is assembled by the Director of DHSEM for the purpose of developing the ERG & implementation program as well as facilitating the deployment of the standardized security assessment tool hereby known as the Building Security and Occupancy Protection program.

APPLICABILITY

These rules and regulations shall apply to all state departments and agencies, hereinafter referred to as “agencies.” The standards and procedures adopted pursuant to these rules and regulations apply to all state properties, whether owned or leased by the state, and to all persons entering in or on such property.

These rules will be effective 90 days after the date of adoption.

BSOP 1 PURPOSE

- A. These rules and regulations provide for the creation and adoption of a state buildings security and occupant protection program. This program will consist of: the development of an Emergency Response Guide, the development of a training and exercise program for the implementation of the guide, and the deployment of a standardized security assessment tool which will inform the need for security enhancements at prioritized facilities.
- B. The building security and occupant protection program adopted pursuant to these rules and regulations shall set forth standards and procedures, which are designed to safeguard state personnel, as well as property owned or leased by the state including facilities, buildings, and grounds.

BSOP 2 PROGRAM STANDARDS AND PROCEDURES

- A. The building security and occupant protection program standards and procedures promulgated by the Director shall include, but not be limited to, the following provisions:
 - 1. State Building Security and Occupant Protection Program. This provision establishes both minimum and preferred security standards as well as general security procedures that are required to be used by agencies to protect life safety and security of persons and property through the development and implementation of the ERG.
 - 2. Facility Security Self-Assessment Questionnaire. This provision establishes guidance, in the form of a self- assessment tool, for use by agencies in determining their current vulnerability and preparedness regarding the physical security of their facility(ies). The completed questionnaire will be used by the DHSEM to evaluate and determine the appropriate security posture for each assessed facility.
 - 3. Emergency Response Guide. This provision provides guidance for state agencies to use in developing a program to protect life and property in the event of an emergency situation, whether man-made or an act of nature.
- B. The building security and occupant protection program standards and procedures shall, at the discretion of the Director, be subject to annual review and revision.
- C. To assist with this review the Director shall establish a Working Group, for Safety and Security known as the ERG Working Group. This Working Group will be composed of a minimum of one representative from each State Department. Such representative shall be an agency administrator appointed pursuant to BSOP 4 (B).
- D. The Working Group shall meet on a periodic basis, the frequency of which will be determined by the Director. As required, but not less than once every other year, the Working Groups shall meet to consider proposed changes to the building security and occupant protection program standards and procedures. However, changes should only be recommended for adoption by the Working Group that are consistent with the requirements of 24-33.5-1608 (2), C.R.S.

BSOP 3 IMPLEMENTATION

- A. The building security and occupant protection program standards and procedures adopted pursuant to these rules and regulations shall be implemented based on a phased implementation process, the milestones for which shall be determined by the Director.
- B. Each agency is responsible for appointing an administrator as a program manager and agency point-of-contact for coordinating the agency's state government security and occupancy protection activities.

- C. The ERG Working Group may develop additional requirements for State agencies regarding building security and occupancy protection as they see fit.
- D. Full compliance with this rule includes the following:
- The ERG Working Group will complete the development of the standardized ERG which will be distributed, at minimum, electronically to all state agencies and employees. This ERG is the minimum standard for state agencies. Agencies that already have more stringent Guides in place that meet all of the included standards are deemed to be in compliance with the ERG.
 - The ERG Working Group will develop a training and exercise program that will be utilized to train every state employee. The ERG Working Group will determine an appropriate timeline requiring all state agencies to train and exercise all employees. Those state agencies that already have more stringent training and exercise programs are deemed to be in compliance with the training and exercise component of the rule.
- E. Agencies will be required to be in full compliance with these standards and procedures by no later than June 30, 2015.

Editor's Notes

History

Entire rule eff. 08/30/2014.